

		spent, and the hourly rates. (<i>569 E. County Blvd. LLC v Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 432; <i>Lunada Biomedical v Nunez</i> (2014) 230 Cal.App.4th 459, 486.) In challenging an attorney’s fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive insufficient. (<i>Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association</i> (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then be heard to complain about the time incurred. (<i>Peak-Las Positas Partners v. Bollag</i> (2009) 172 Cal.App.4th 101, 114.) Defendants seek to recover \$337,716.25 in attorney fees. Defendants’ evidence establishes its counsel spent 438 hours defending the action over 18 months plus 8 hours anticipated for reviewing the opposition, drafting the reply brief, and preparing for and attending the hearing on the Motion. (Molen Decl., ¶¶ 6, 21, Exh. C.) The attorney’s hourly rates are \$600-\$1,000 and the non-attorney hourly rates are \$400-\$575. (Molen Decl. ¶¶ 14-18, Exh. C.) The court finds that the hourly rates and time spent defending the action are within a reasonable range. Plaintiff has not challenged the reasonableness of the amount of fees sought. The motion is GRANTED.
9.	CEBALLOS VS. CEBALLOS 2024-01429970	DEMURRER TO THIRD AMENDED COMPLAINT Defendant Yvonne Ceballos’s Demurrer to the Third Amended Complaint (TAC) is SUSTAINED without leave to amend. Publications made within judicial proceedings or “any other official proceeding authorized by law,” are privileged. (Civ. Code, § 47, sub. (b).) “The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (<i>Silberg v. Anderson</i> (1990) 50 Cal.3d 205, 212.) “The principal purpose of [the privilege] is to afford litigants and witnesses ... the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions.” (<i>Id.</i> at p. 213.) “For policy reasons, even malicious or fraudulent communications are privileged under Civil Code section 47, subdivision (b).” (<i>Herterich v. Peltner</i> (2018) 20 Cal.App.5th 1132, 1139.) “Courts give the litigation privilege a ‘broad interpretation’ in order to further its principle purpose of protecting ‘access to the courts without fear of...derivative tort actions.’” (<i>People v. Potter Handy, LLP</i> (2023) 97 Cal.App.5th 938, 947.) Here, Plaintiff again claims Defendant’s letter submitted to the Los Angeles Superior Court,

Family Law Division, can be the basis of his claims. This Court previously ruled the letter is protected by the litigation privilege. Thus, Plaintiff cannot use the letter as a basis for his Intentional Infliction of Emotion Distress (IIED) claim either.

“A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051 [internal quotations omitted] [superseded by statute on other grounds as stated in *Wawrzewski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 698-699.]

“A defendant’s conduct is ‘outrageous’ when it is so ‘extreme as to exceed all bounds of that usually tolerated in a civilized community.’” (*Hughes, supra*, 46 Cal.4th at pp. 1050-1051.) “It is not enough that the conduct be intentional and outrageous. It must also be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (*Catsouras v. Department of California Highway Patrol* (2010) 181 Cal.App.4th 856, 875.)

Whether allegations in a complaint rise to the level of extreme and outrageous is a determination that can be made as a matter of law. (See *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494; See also *Trerice v. Blue Cross of California* (1989) 209 Cal.App.3d 878, 883.)

Plaintiff also claims “Defendant knowingly provided financial assistance to Plaintiff’s adult daughter ... despite awareness of Plaintiff’s estrangement and the foreseeable emotional harm such conduct would cause.” (TAC, p. 2.) Financial support of a person from a plaintiff as a matter of law is not extreme or outrageous conduct. Plaintiff cannot control others actions by claiming they cause him emotional distress and there is no legal authority which extends extreme or outrageous conduct to such innocuous actions.

Based on the above, the demurrer to the First Cause of Action is SUSTAINED.

“The elements of any negligence cause of action are duty, breach of duty, proximate cause, and damages.” (*Peredia v. HR Mobile Servs., Inc.* (2018) 25 Cal.App.5th 680, 687.)

Plaintiff alleges Defendant breached her duty of care by creating or increasing the risk of emotional injury to Plaintiff. As stated above, Plaintiff’s claim of emotional injury are insufficient. Thus, Defendant has not breached her duty of care to Plaintiff. Therefore, Plaintiff’s negligence claim fails as a matter of law.

		Based on the above, the demurrer to the Second Cause of Action is SUSTAINED. Plaintiff's latest attempt to amend his complaint has resulted in frivolous allegations being substituted in and previously rejected allegations being reasserted. Thus, the Court finds Plaintiff has no reasonable possibility of amending the complaint to assert a meritorious cause of action. Therefore, leave to amend is DENIED.
10.	MCMILLAN VS. R.W. SHELBY & CO., INC. 2026-01540339	1. DEMURRER TO COMPLAINT Defendants R.W. Selby & Co., Inc.; Chris Cordova; Shannon Fernadnez; and 30122 Niguel Apartments, LLC's Demurrer is OVERRULED. Defendants demur to the second through fourth causes of action on the ground Plaintiffs failed to adequately allege a landlord-tenant relationship which in an essential element of each cause of action. "A cardinal rule of pleading is that only the ultimate facts need be alleged." (<i>Ludgate Ins. Co. v. Lockheed Martin Corp.</i> (2000) 82 Cal.App.4th 592, 606.) Plaintiffs have plead sufficient ultimate facts to allege Defendants are Plaintiffs' landlord. Plaintiffs allege the parties "were in a landlord-tenant relationship created by a written lease agreement ('Lease')." (Compl., ¶ 23.) Thus, Defendants' demurrer is overruled. 2. MOTION TO STRIKE PORTIONS OF COMPLAINT Defendants R.W. Selby & Co., Inc.; Chris Cordova; Shannon Fernadnez; and 30122 Niguel Apartments, LLC's Motion to Strike Portions of the Complaint is DENIED. Defendants seek to strike references to punitive damages in the Complaint. A demand for punitive damages for the commission of any tort requires more than the mere allegation of the "oppression, fraud, and malice" language found in Civil Code section 3294. (See <i>Perkins v Superior Court</i> (1981) 117 Cal.App.3d 1, 6-7.) "[F]acts must be alleged in the pleading to support such a claim." (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166.) The facts alleged must show the defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (<i>Silberg v. California Life Ins. Co.</i> (1974) 11 Cal.3d 452, 462.) Section 3294, subdivision (c) defines malice, oppression and fraud as follows: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust